

BRAND NAME ONLY JUSTIFICATION**Requirement Title / Name:** Herbicide for SPRO Agencies (GrazonNext HL)**Purchase Request Number:** 44046177**Originating Office (Customer):** Branch of Natural Resources**Division / Unit / Branch:** Southern Plains Regional Office**1. This is a justification for other than full and open competition.**

Agency: Bureau of Indian Affairs

IA Acquisition Office: A03 Southern Plains Region

2. Nature and/or description of the action being approved:

Requirement: New

Pricing: Firm-Fixed Price

3. A description of the supplies or services required to meet the agency's needs (including the estimated value):

The Bureau of Indian Affairs, Southern Plains Regional Office has a requirement for GrazonNext HL Herbicide 2 Gal Containers / Quantity 600 each.

IGE: **4. An Identification of the statutory authority permitting other than full and open competition:**

AUTHORITY: FAR 13.106-1(b)(1)(i)

5. A demonstration that the proposed contractor's unique qualifications or the nature of the acquisition requires use of the authority cited.

The Government's requirement is to procure an herbicide product that meets specific performance criteria for control of broadleaf weeds in sensitive pasture and rangeland environments. GrazonNext HL Herbicide has been determined to have unique and essential characteristics — including demonstrated field efficacy, label approvals for targeted weeds in designated use sites, and an established safety profile under federal and state pesticide regulations — that are critical to meeting the Government's agricultural management objectives.

6. A description of efforts made to ensure that offers are solicited from as many potential sources as is practicable, including whether a notice was or will be publicized as required by Subpart 5.2 and, if not, which exception under 5.202 applies.

There are multiple vendors capable of providing this product. Market research concluded that there are enough ISBEE vendors to allow for competition as these products are commercially available. There is a reasonable expectation that two or more ISBEE vendors will provide a quote. This requirement will be posted publicly on SAM.gov with an ISBEE set-aside, along with a copy of this J&A document to satisfy the requirements of FAR 5.2.

7. A determination by the contracting officer that the anticipated cost to the Government will be fair and reasonable.

I hereby determine that the anticipated cost to the Government for this contract action will be fair and reasonable. This determination is based on the following:

1. The expectation of receiving competitive quotations IAW FAR 13.106-3(a)(1).
2. The comparison to an IGE IAW FAR 13.106-3(a)(2)(vi).

8. A description of the market research conducted (see Part 10) and the results or a statement of the reason market research was not conducted.

Market research concluded that there are enough IEE vendors to allow for competition as these products are commercially available. There is a reasonable expectation that two or more IEE vendors will provide a quote. The IA Native American Businesses in SAM.gov was used to complete an IEE business search using NAICS 325320 and filtered for IEE's on 1/7/26. The results showed that there are 36 IEE's vendors nationwide. This requirement is considered a commercial item and will be posted publicly as a combined synopsis and solicitation IAW FAR 12.603. This justification will be posted with the solicitation IAW FAR 5.102(a)(6).

9. Any other facts supporting the use of justification of other than full and open competition, such as:

Full and open competition will be used- Just for a Brand Name Product that has chemical makeup that is unique in the agriculture industry and other companies' similar products do not meet, or cannot be modified to meet, the agency's needs.

10. A listing of the sources, if any, that expressed, in writing, an interest in the acquisition.

The customer obtained a quote from agricultural websites. This item can be sourced from multiple vendors.

11. A statement of any actions, if any, the agency may take to remove or overcome any barriers to competition before any subsequent acquisition for the supplies or services required.

This will be an open solicitation. Market research will continue to be conducted to minimize the risk of utilizing brand name actions in the future. Once it is determined other manufacturer's products could be utilized, there will no longer be a need to continue similar requirements as Brand Name.

Originating Office Attestation:

I certify that the technical data which forms a basis for this justification is complete and accurate and meets the Government's minimum needs.



Acting Natural Resources Officer

Bureau of Indian Affairs

12. Contracting Officer certification that the justification is accurate and complete to the best of the contracting officer's knowledge and belief:

I hereby certify that this justification is accurate and complete to the best of my knowledge and belief.



Contracting Officer

Indian Affairs

ADDITIONAL APPROVALS:

CCO or One Level Above the CO (if the CCO is the signing CO)

(Required for acquisitions valued between \$250K - \$750K)

I hereby provide concurrence that this justification is accurate and complete to the best of my knowledge and belief.

Name

Title

Office

IA Competition Advocate

(Required for acquisitions valued between \$750K - \$15M)

I hereby provide concurrence that this justification is accurate and complete to the best of my knowledge and belief.

Name

IA Competition Advocate

Head of the Contracting Activity (HCA)

(Required for acquisitions valued between \$15M - \$75M)

I hereby provide concurrence that this justification is accurate and complete to the best of my knowledge and belief.

Name

Head of the Contracting Activity

Senior Procurement Executive (SPE)

(Required for acquisitions valued over \$75M)

I hereby provide concurrence that this justification is accurate and complete to the best of my knowledge and belief.

Name

Senior Procurement Executive